

The U.P. Essential Commodities (Preparatory Measures) Order, 1966

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State of Uttar Pradesh - Act

The U.P. Essential Commodities (Preparatory Measures) Order, 1966

UTTAR PRADESH

India

The U.P. Essential Commodities (Preparatory Measures) Order, 1966

Rule THE-U-P-ESSENTIAL-COMMODITIES-PREPARATORY-MEASURES-ORDER-1966 of 1966

Published on 30 June 1966

Commenced on 30 June 1966

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The U.P. Essential Commodities (Preparatory Measures) Order, 1966

Published vide Notification U.P. Gazette, (Extraordinary), dated June 30, 1966, vide Notification No. FB-1871/29-A-2-RF-147-1962, dated 30.6.1966

Whereas the State Government is of opinion that it is expedient so to do for securing the equitable distribution and availability of Foodgrains at fair prices;

Now, therefore, in exercise of the powers under Section 3 of the Essential Commodities Act, 1955 (Act No. X of 1955), read with the notification of the Government of India in the Ministry of Food and Agriculture (Department of Food), published under G.S.R. 906, dated June 9, 1966 and all other powers enabling him in this behalf, the Governor of Uttar Pradesh is pleased to make the following Order, namely:

1.

(i)

This order may be called the Uttar Pradesh Essential Commodities (Preparatory Measures) Order, 1966.

(ii)

It extends to all regulated towns and shall also extend to any other area in district to which the District Magistrate of the district may, by notification in the Gazette, extend it.

(iii)

It shall come into force at once.

2.

Definitions.

- In this Order unless the context otherwise requires,-

(a)

"regulated town" means any area included in the Schedule hereto;

(b)

"Food Officer" means any person appointed as such by the District Magistrate of the district.

3.

Collection of information.

(1)

A Food Officer may collect such information and statistics as may be necessary for rationing or distributing any essential commodity specified by the State Government or any officer authorised by it in this behalf.

(2)

Every person shall provide the Food Officer such information and statistics as he may be required by such officer to provide.

4.

Marks on premises.

- A Food Officer may make any marks or numbers on any premises for the purpose of carrying out their duties under this order and it shall be the duty of the occupant of such premises to maintain such marks or number in a legible condition.

5.

Food Officer to have access to premises.

- Every person occupying any premises shall allow the Food Officer such access thereto as may be required by the Food Officer for the purpose of his work:

Provided that in requiring access due regard shall be had to the social and religious customs of the occupier.

6.

Prohibitions.

- No person shall-

(a)

knowingly make any false returns to a Food Officer;

(b)

voluntarily obstruct a Food Officer exercising any powers or performing any duties under this Order;

(c)

intentionally give a false answer to or refuse to answer to the best of his knowledge or belief any question asked by a Food Officer in accordance with clause 4 of this Order;

(d)

remove, obliterate, alter, fail to maintain in legible condition or damage any letters or numbers, which may have been painted on or affixed to any premises by a Food Officer; and no Food Officer shall knowingly make any false return in connection with any enquiry conducted by him.

7.

Rescission and savings.

- The U.P. Essential Commodities (Preparatory Measures) Order, 1962 issued, vide Notification No.4645/ XXIX-AF, dated December 20, 1962, is hereby rescinded and the provisions of Sections 6, 8, and 24 of U.P. General Clauses Act, 1904 (U.P. Act I of 1904), shall apply in relation to such rescission as they apply in relation to repeal of an enactment by an Uttar Pradesh Act.

For Schedule See U.P. Gazette, (Extraordinary), dated June 30, 1976.

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